

# EVIDENCE PACKAGE

Small Claims Court — Travis County, Texas

Dan Wimberly v. Jamael Thompson

Prepared: June 09, 2026

## Statement of Purpose

This self-contained evidence package consolidates key exhibits supporting the plaintiff's claim for vehicle repair damages, out-of-pocket expenses, and lost wages arising from a March 9, 2024 collision. All exhibits are embedded below — no external links or references are required to view this evidence.

## Table of Exhibits

| Exhibit | Title                                   | Description                                                                                                     |
|---------|-----------------------------------------|-----------------------------------------------------------------------------------------------------------------|
| A       | Body Repair Paid-in-Full Receipt        | Smokey's Auto & Body invoice INV005 dated May 14, 2024 — \$6,386.75 paid in full, balance \$0.00.               |
| B       | Anne's \$5,000 Bank Withdrawal Receipt  | Chase Bank savings withdrawal receipt dated May 8, 2024 for \$5,000.00 cash.                                    |
| C       | Initial Collision Admission             | Text message from JT: "Damn I hit your car bro" and "I'm take care of the damage" — March 9, 2024.              |
| D       | Vehicle Damage at Scene                 | Photograph of rear-quarter panel damage to 2010 Chevy Camaro (TX plate RYF-2374).                               |
| E       | No Insurance Admission                  | Text message from JT: "No coverage since March 3rd." — March 9, 2024.                                           |
| F       | Admission and Promise to Pay            | Text message from JT: "Yes I hit your car and I'm sorry and I'm gonna handle it all."                           |
| G       | Agreement to Reimburse Rental and Wages | Text message from JT: "Yes receipts and reimbursement cool" — May 5, 2024.                                      |
| H       | \$5,000 Settlement Offer from Body Shop | Orlando (body shop) proposes \$5,000 settlement; balance \$5,755 and counting — cash only.                      |
| I       | Agreement to Sign \$6,000 Payment Plan  | Text message from JT: "I'll sign the \$6000 even if he charges taxes" — May 7, 2024.                            |
| J       | Refusal to Complete \$6,000 Deal        | Text message from JT: "I'll never do a \$6000 deal with no receipt" and "Need receipt."                         |
| K       | Acknowledgment of Lost Wages            | JT acknowledges plaintiff lost wages and states he is "trying to right my wrong" after two months without work. |
| L       | Body Shop Coordination — Payment Delay  | Text to Orlando body shop: "It doesn't have 500 until saturday" — March 14, 2024.                               |
| M       | Daily Wage Rate and Work Impact         | Plaintiff states \$150/day (\$750/week) income and inability to work because JT hit his car.                    |
| N       | 2023 W-2 Wage Statement (Plaintiff)     | Form W-2 from River City Roofing LLC — wages \$10,333.40 (2023); supports lost-income claim.                    |

**Instructions:** Each exhibit begins with a divider page labeled EXHIBIT A, B, C, etc., followed by the embedded document or screenshot on the next page(s).

# EXHIBIT A

## Body Repair Paid-in-Full Receipt

Smokey's Auto & Body invoice INV005 dated May 14, 2024 — \$6,386.75 paid in full, balance \$0.00.

*Source: Car repair paid in Full receipt.png*



# Smokey's Auto & Body

Business # Auto & Body

1902 Fleischer dr ,Austin 1ax,78728

smokeysautobody512@gmail.com | 7372331347

## Invoice

INV005

Date

May 14, 2024

Bill to:

2010 Chevy Camaro

| #                  | Item                             | Price      | Qty | Total             |
|--------------------|----------------------------------|------------|-----|-------------------|
| 01                 | Driver Side Quarter Panel Repair | \$5,900.00 | 1   | \$5,900.00        |
| Subtotal           |                                  |            |     | \$5,900.00        |
| Sale tax (8.25%)   |                                  |            |     | \$486.75          |
| <b>GRAND TOTAL</b> |                                  |            |     | <b>\$6,386.75</b> |
| Paid               |                                  |            |     | \$6,386.75        |
| <b>DUE</b>         |                                  |            |     | <b>\$0.00</b>     |

Pay

# **EXHIBIT B**

## **Anne's \$5,000 Bank Withdrawal Receipt**

Chase Bank savings withdrawal receipt dated May 8, 2024 for \$5,000.00 cash.

*Source: Anne Bank Withdrawal Reciept.jpg*



Deposit cash or checks  
at most Chase ATMs.  
An image of your check can  
be printed on your receipt.

My Transaction Summary

\*\*\*\*\*

|                           |            |
|---------------------------|------------|
| Transaction #46           |            |
| Account Number Ending In: | 0061       |
| Savings Withdrawal        | \$5,000.00 |

|                   |            |
|-------------------|------------|
| Available Balance | \$6,500.00 |
| Present Balance   | \$6,500.00 |

.....

JPMorgan Chase Bank, N.A.  
Pfennig and 685, Branch 000976  
1-800-935-9935

Your satisfaction matters. Share your  
feedback at: [chase.com/sendusfeedback](https://chase.com/sendusfeedback)

Member FDIC, Equal Housing Lender  
Please keep your receipt  
05/08/2024 16:03

Business Date 05/08/2024  
Session #21

Thank you - Savannah  
Cashbox #08

# **EXHIBIT C**

## **Initial Collision Admission**

Text message from JT: "Damn I hit your car bro" and "I'm take care of the damage" — March 9, 2024.

*Source: 1.jpg*

&lt; Search



Dead bolt is locked

2:37 AM

Saturday, March 9, 2024

We chat in am

2:25 AM

Damn I hit your car bro

9:20 AM

Holy shit

U have insurance?

12:32 PM

I'm still at the customer's house. Imma call you in a min.

Sorry

I'm take care of the damage

12:50 PM

I'm not mad as long as it gets fixed

12:51 PM

I know just sucks My





# **EXHIBIT D**

## **Vehicle Damage at Scene**

Photograph of rear-quarter panel damage to 2010 Chevy Camaro (TX plate RYF-2374).

*Source: 1.jpeg*



# **EXHIBIT E**

## **No Insurance Admission**

Text message from JT: "No coverage since March 3rd." — March 9, 2024.

*Source: 5.jpg*

 Search

Any word on insurance coverage?

2:28 PM

Imma call when I finish with customers

2:29 PM

No coverage since March 3rd.

Damn!

3:28 PM

Droid your body shop guy call you back?

3:30 PM

He at the game. He gonna call later

3:31 PM

This sucks

3:31 PM

I know brotha man I feel horrible

3:32 PM

I wonder if I get



# **EXHIBIT F**

## **Admission and Promise to Pay**

Text message from JT: "Yes I hit your car and I'm sorry and I'm gonna handle it all."

*Source: 93.jpg*



JT



I was supposed to mow the grass when you got back from San Antonio before the wreck happened because you were supposed to go help me get the pool table and everything remember?

Just not good communication on any of the subjects. Yes I hit your car and I'm sorry and I'm gonna handle it all but this whole thing has been a mess room rental and everything.

11:36 PM



# **EXHIBIT G**

## **Agreement to Reimburse Rental and Wages**

Text message from JT: "Yes receipts and reimbursement cool" — May 5, 2024.

*Source: 1.jpg*



JT >



iMessage  
Sun, May 5 at 12:40 PM

Hi, this is Dan ( my phones messed up, texting from Anne's phone)- just checking that we are on for either picking up my car tomorrow or work.

Sun, May 5 at 5:15 PM

I won't be back til Tuesday afternoon or so

I have a job in San Antonio paying \$150 a day. Either send me the money to rent a car so that I can do my job or send me the \$150 a day

Also, I need \$150 for having to rent a car this weekend

Yes receipts and reimbursement cool



iMessage





# **EXHIBIT H**

## **\$5,000 Settlement Offer from Body Shop**

Orlando (body shop) proposes \$5,000 settlement; balance \$5,755 and counting — cash only.

*Source: 290.jpg*

&lt; Search



I think it should have both names but bro quit trippin let's get this done.

8:57 PM



# **EXHIBIT I**

## **Agreement to Sign \$6,000 Payment Plan**

Text message from JT: "I'll sign the \$6000 even if he charges taxes" — May 7, 2024.

*Source: 281.jpg*

&lt; Search



I'm fine with all that.

May 7, 2024

8:52 PM

0.0166666667  
interest on her loan.

8:52 PM

I don't care what the  
actual money goes to  
bro

He can put the  
storage part at  
\$1000. The more he  
does the more I can  
get from credit card

8:52 PM

Let's put 10% on the  
loan and get you a  
reciept.

8:52 PM

I'll sign the \$6000  
even if he charges



# **EXHIBIT J**

## **Refusal to Complete \$6,000 Deal**

Text message from JT: "I'll never do a \$6000 deal with no receipt" and "Need receipt."

*Source: 235.jpg*

&lt; J JT ▾



I'll never do a \$6000 deal with no receipt. You wouldn't either bro

8:33 PM

Take the loan or get served. End of story.

This isn't a deal. There is no negotiation.

8:33 PM

Need receipt

8:33 PM

Then pay for your shit.

8:34 PM

Why would you want me to get fucked out of an extra \$855 that doesn't even affect



# **EXHIBIT K**

## **Acknowledgment of Lost Wages**

JT acknowledges plaintiff lost wages and states he is "trying to right my wrong" after two months without work.

*Source: 163.jpg*



JT



Plus I don't even have the money to pay it upfront.

I have like \$400 to my name.

1:59 PM

I just saying the 800 I've paid you is a lil better than not being able to work for 2 months. Sure you've lost wages I'm sure of that but I've been trying to right my wrong throughout this process and you doing what you do. Make it seem like I haven't been answering the phone or text and like I have





# EXHIBIT L

## Body Shop Coordination — Payment Delay

Text to Orlando body shop: "Jt doesn't have 500 until saturday" — March 14, 2024.

*Source: 1.jpg*

<  Orlando ▾



1902 Fleischer dr Austin  
Tx

Suite 114

2:01 PM

Thursday, March 14, 2024

Hi is Orlando whit the  
body shop just seen  
how we looking whit the  
towing

12:33 PM

It doesn't have 500 until  
saturday

5:39 PM

No problem you can  
still send the car to the  
shop that way I can  
get started I can wait  
till Saturday to order  
supplies 👍

6:08 PM

6:08 PM



# **EXHIBIT M**

## **Daily Wage Rate and Work Impact**

Plaintiff states \$150/day (\$750/week) income and inability to work because JT hit his car.

*Source: 166.jpg*



JT



I make \$150 a day at my new job. \$750 a week. \$3k a month

2:01 PM

I have a job dude. I can't do it because you hit my car.

Yes on a seperate note I appreciate the work. But thays seperate.

2:02 PM

1:02

5G

**Dan Green**

now

Text Message



You paid Dan Wimberly - \$120.00

18d

6 hr labor



0:00



# **EXHIBIT N**

## **2023 W-2 Wage Statement (Plaintiff)**

Form W-2 from River City Roofing LLC — wages \$10,333.40 (2023); supports lost-income claim.

*Source: 2023 W2 River City Roofing.pdf*

Copy B--To Be Filed With Employee's FEDERAL Tax Return

This information is being furnished to the Internal Revenue Service.

OMB No. 1545-0008

|                                           |                                    |                                 |                     |
|-------------------------------------------|------------------------------------|---------------------------------|---------------------|
| a. Employee's social security number      | 1. Wages, tips, other compensation | 2. Federal income tax withheld  |                     |
| 351729022                                 | 10333.40                           | 1974.23                         |                     |
|                                           | 3. Social security wages           | 4. Social security tax withheld |                     |
|                                           | 10333.40                           | 640.67                          |                     |
| b. Employer ID number (EIN)               | 5. Medicare wages and tips         | 6. Medicare tax withheld        |                     |
| 82-2346511                                | 10333.40                           | 149.83                          |                     |
| c. Employer's name, address, and ZIP code |                                    |                                 |                     |
| River City Roofing LLC                    |                                    |                                 |                     |
| 3017 SE 157th Ave                         |                                    |                                 |                     |
| Portland, OR 97236                        |                                    |                                 |                     |
| d. Control number                         |                                    |                                 |                     |
| e. Employee's name, address, and ZIP code |                                    |                                 |                     |
| Daniel Wimberly                           |                                    |                                 |                     |
| 1801 Wells Branch Pkwy #1411              |                                    |                                 |                     |
| AUSTIN, TX 78728                          |                                    |                                 |                     |
| 7. Social security tips                   | 8. Allocated tips                  | 9. Verification Code            |                     |
|                                           |                                    |                                 |                     |
| 10. Dependent care benefits               | 11. Nonqualified plans             | 12a. Code See inst. for Box 12  |                     |
|                                           |                                    |                                 |                     |
| 13. Statutory employee                    | 14. Other<br>FAMLI 15.75           | 12b. Code                       |                     |
| Retirement plan                           |                                    | 12c. Code                       |                     |
| Third-party sick pay                      |                                    | 12d. Code                       |                     |
| CO                                        | 95843225                           | 3500.00                         | 146.00              |
| 15. State                                 | Employer's state ID number         | 16. State wages, tips, etc.     | 17.State income tax |
| 18. Local wages, tips, etc.               | 19. Local income tax               | 20. Locality name               |                     |
|                                           |                                    |                                 |                     |

Form W-2 Wage and Tax Statement

2023

Department of the Treasury ~ Internal Revenue Service

Copy 2--To Be Filed With Employee's State, City, or Local Income Tax Return

OMB No. 1545-0008

|                                           |                                    |                                 |                     |
|-------------------------------------------|------------------------------------|---------------------------------|---------------------|
| a. Employee's social security number      | 1. Wages, tips, other compensation | 2. Federal income tax withheld  |                     |
| 351729022                                 | 10333.40                           | 1974.23                         |                     |
|                                           | 3. Social security wages           | 4. Social security tax withheld |                     |
|                                           | 10333.40                           | 640.67                          |                     |
| b. Employer ID number (EIN)               | 5. Medicare wages and tips         | 6. Medicare tax withheld        |                     |
| 82-2346511                                | 10333.40                           | 149.83                          |                     |
| c. Employer's name, address, and ZIP code |                                    |                                 |                     |
| River City Roofing LLC                    |                                    |                                 |                     |
| 3017 SE 157th Ave                         |                                    |                                 |                     |
| Portland, OR 97236                        |                                    |                                 |                     |
| d. Control number                         |                                    |                                 |                     |
| e. Employee's name, address, and ZIP code |                                    |                                 |                     |
| Daniel Wimberly                           |                                    |                                 |                     |
| 1801 Wells Branch Pkwy #1411              |                                    |                                 |                     |
| AUSTIN, TX 78728                          |                                    |                                 |                     |
| 7. Social security tips                   | 8. Allocated tips                  | 9. Verification Code            |                     |
|                                           |                                    |                                 |                     |
| 10. Dependent care benefits               | 11. Nonqualified plans             | 12a. Code See inst. for Box 12  |                     |
|                                           |                                    |                                 |                     |
| 13. Statutory employee                    | 14. Other<br>FAMLI 15.75           | 12b. Code                       |                     |
| Retirement plan                           |                                    | 12c. Code                       |                     |
| Third-party sick pay                      |                                    | 12d. Code                       |                     |
| CO                                        | 95843225                           | 3500.00                         | 146.00              |
| 15. State                                 | Employer's state ID number         | 16. State wages, tips, etc.     | 17.State income tax |
| 18. Local wages, tips, etc.               | 19. Local income tax               | 20. Locality name               |                     |
|                                           |                                    |                                 |                     |

Form W-2 Wage and Tax Statement

2023

Department of the Treasury ~ Internal Revenue Service

Copy C--For EMPLOYEE'S RECORDS(See Notice to Employee.)

This information is being furnished to the Internal Revenue Service. If you are required to file a tax return, a negligence penalty or other sanction may be imposed on you if this income is taxable and you fail to report it.

OMB No. 1545-0008

|                                           |                                    |                                 |                     |
|-------------------------------------------|------------------------------------|---------------------------------|---------------------|
| a. Employee's social security number      | 1. Wages, tips, other compensation | 2. Federal income tax withheld  |                     |
| 351729022                                 | 10333.40                           | 1974.23                         |                     |
|                                           | 3. Social security wages           | 4. Social security tax withheld |                     |
|                                           | 10333.40                           | 640.67                          |                     |
| b. Employer ID number (EIN)               | 5. Medicare wages and tips         | 6. Medicare tax withheld        |                     |
| 82-2346511                                | 10333.40                           | 149.83                          |                     |
| c. Employer's name, address, and ZIP code |                                    |                                 |                     |
| River City Roofing LLC                    |                                    |                                 |                     |
| 3017 SE 157th Ave                         |                                    |                                 |                     |
| Portland, OR 97236                        |                                    |                                 |                     |
| d. Control number                         |                                    |                                 |                     |
| e. Employee's name, address, and ZIP code |                                    |                                 |                     |
| Daniel Wimberly                           |                                    |                                 |                     |
| 1801 Wells Branch Pkwy #1411              |                                    |                                 |                     |
| AUSTIN, TX 78728                          |                                    |                                 |                     |
| 7. Social security tips                   | 8. Allocated tips                  | 9. Verification Code            |                     |
|                                           |                                    |                                 |                     |
| 10. Dependent care benefits               | 11. Nonqualified plans             | 12a. Code See inst. for Box 12  |                     |
|                                           |                                    |                                 |                     |
| 13. Statutory employee                    | 14. Other<br>FAMLI 15.75           | 12b. Code                       |                     |
| Retirement plan                           |                                    | 12c. Code                       |                     |
| Third-party sick pay                      |                                    | 12d. Code                       |                     |
| CO                                        | 95843225                           | 3500.00                         | 146.00              |
| 15. State                                 | Employer's state ID number         | 16. State wages, tips,          | 17.State income tax |
| 18. Local wages, tips, etc.               | 19. Local income tax               | 20. Locality name               |                     |
|                                           |                                    |                                 |                     |

Form W-2 Wage and Tax Statement

2023

Department of the Treasury ~ Internal Revenue Service

Copy 2--To Be Filed With Employee's State, City, or Local Income Tax Return

OMB No. 1545-0008

|                                           |                                    |                                 |                     |
|-------------------------------------------|------------------------------------|---------------------------------|---------------------|
| a. Employee's social security number      | 1. Wages, tips, other compensation | 2. Federal income tax withheld  |                     |
| 351729022                                 | 10333.40                           | 1974.23                         |                     |
|                                           | 3. Social security wages           | 4. Social security tax withheld |                     |
|                                           | 10333.40                           | 640.67                          |                     |
| b. Employer ID number (EIN)               | 5. Medicare wages and tips         | 6. Medicare tax withheld        |                     |
| 82-2346511                                | 10333.40                           | 149.83                          |                     |
| c. Employer's name, address, and ZIP code |                                    |                                 |                     |
| River City Roofing LLC                    |                                    |                                 |                     |
| 3017 SE 157th Ave                         |                                    |                                 |                     |
| Portland, OR 97236                        |                                    |                                 |                     |
| d. Control number                         |                                    |                                 |                     |
| e. Employee's name, address, and ZIP code |                                    |                                 |                     |
| Daniel Wimberly                           |                                    |                                 |                     |
| 1801 Wells Branch Pkwy #1411              |                                    |                                 |                     |
| AUSTIN, TX 78728                          |                                    |                                 |                     |
| 7. Social security tips                   | 8. Allocated tips                  | 9. Verification Code            |                     |
|                                           |                                    |                                 |                     |
| 10. Dependent care benefits               | 11. Nonqualified plans             | 12a. Code See inst. for Box 12  |                     |
|                                           |                                    |                                 |                     |
| 13. Statutory employee                    | 14. Other<br>FAMLI 15.75           | 12b. Code                       |                     |
| Retirement plan                           |                                    | 12c. Code                       |                     |
| Third-party sick pay                      |                                    | 12d. Code                       |                     |
| CO                                        | 95843225                           | 3500.00                         | 146.00              |
| 15. State                                 | Employer's state ID number         | 16. State wages, tips,          | 17.State income tax |
| 18. Local wages, tips, etc.               | 19. Local income tax               | 20. Locality name               |                     |
|                                           |                                    |                                 |                     |

Form W-2 Wage and Tax Statement

2023

Department of the Treasury ~ Internal Revenue Service